

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
OCTOBER TERM, A.D. 2015

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.CHIEF JUSTICE
BEFORE HIS HONOR: KABINEH M. JA'NEHASSOCIATE JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: PHILIP A.Z. BANKS IIIASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE YUOHASSOCIATE JUSTICE

T. Z. Davis and Jerry V. Geedeh in their individual capacities,)
And the Bassa Brotherhood Industrial Benefit Society,)
Represented by its President, T.Z. Davis and its Secretary)
General, Jerry V. Geedeh of the City of Monrovia, Liberia)
..... Appellants) APPEAL
Vs.)
Adelaide F. Nevins and Evangeline M. Smith of the)
City of Monrovia, LiberiaAppellees)
)

GROWING OUT OF THE CASE:

IN RE: Adelaide F. Nevins and Evangeline M. Smith of the)
City of Monrovia, LiberiaPlaintiffs/Movant) Action of
Vs.) EJECTMENT
T. Z. Daviss and Jerry V. Geedeh in their individual capacities,)
And the Bassa Brotherhood Industrial Benefit Society,)
Represented by its President, T.Z. Davis and its Secretary)
General , Jerry V. Geedeh of the City of Monrovia, Liberia)
..... Defendants)

HEARD: JULY 6, 2015

DECIDED: January 29, 2016

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

This appeal is before this Court from a ruling of the Sixth Judicial Circuit, Montserrado County, granting a motion for summary judgment in an ejectment action filed by the appellees, Madam Adelaide F. Nevins and Evangeline M. Smith. Appellees brought an ejectment action against the appellants, T. Z. Davis and Jerry V. Geedeh, in their individual capacities, and the Bassa Brotherhood Industrial Benefit Society, before the Civil Law Court, Sixth Judicial Circuit, during its March Term A.D. 2013. The appellees in their complaint prayed the court below to eject the appellants and to grant damages for their wrongful withholding of the appellees' property.

The appellees declared their property rights in a 0.82 lot of land with a building thereon, consisting of eight apartments, two storerooms, and bar situated in Bassa Community, Capitol Bypass, near the Central Police Station in Monrovia. The appellees alleged that they are bona fide owners of the described parcel of land with the building thereon; that the land was bought in 1977; that their ownership to the 0.82 lot is evidenced by a public land

sale deed from the Republic of Liberia issued in their favor on March 11, 1977, probated April 6, 1977, with the Probate Commissioner for Montserrado County, and registered according to law in Volume 257 to 276, pages 532 to 534. They also alleged that they had been in open and notorious possession of the 0.82 lot of land since the 1960s and after their purchase of the real property from the Government of Liberia on March 11, 1977.

Appellees alleged further that before the purchase of the land, they lived and grew up on the identical property as little girls in the early 1960s with their deceased mother; that under the supervision of their mother, Mrs. Lucia B. Tolbert, they together constructed an apartment building consisting of eight apartments, two storerooms and one bar; that as a result of the 1980 coup d'etat in Liberia, members of their family were targeted, humiliated and jailed; as a result, they were forced to escape the bailiwick of the Republic of Liberia for refuge. While out of the Country, appellees said, their mother, Lucia B. Tolbert, consummated a lease agreement on April 29, 1983, for the property in her capacity as a lessor to one Kay-El Traders for a certain period of twenty five (25) years which commenced on June 1, 1983 and ended on May 31, 2003.

Upon their return to Liberia in 2004, appellees said, they observed that squatters were occupying the apartment building which had been vacated by their lessee, Kay-El Traders, after his leased period ended in 2003. Given the deplorable state of the premises, appellee informed the squatters to remain on the property until the situation in the country improved. Subsequently, in 2005, one of the appellees' husband, William Smith, returned to Liberia to renovate and rehabilitate the building, but met some unknown occupants in the apartment building who informed him that they were placed on the property by the appellants. Appellees alleged that efforts were made to have the appellants amicably turn over the property to appellees and to resolve the appellants' illegal withholding, possession and rental of appellees' building, but the appellants who had seized and taken over appellees' building and property in 2005, without due process of law, or court's order and authority, resisted the proposed amical resolution and instead were abusive, claiming that appellees' uncle, the late President William R. Tolbert, illegally conveyed their private property to appellees.

The appellees further alleged that they have researched and double-checked the records of the Monrovia City Court at the Temple of Justice, the Sixth Judicial Circuit, Montserrado County, and the Honorable Supreme Court of

Liberia, to determine whether or not appellants current control and possession of the subject property was sanctioned by any court of competent jurisdiction; but appellees were not able to locate any records, indicating that the appellants/respondents seizure of the property in 2005 was without a court order, in disregard of the basic legal principle of due process of law.

The appellants, in their answer to the appellees' complaint, basically alleged that the appellees land sale deed falls short of the procedure prescribed in Chapter 3, Vol V., of the Public Lands Law for sale of public land; that on December 9, 1925, the Senate and House of Representatives of the Republic passed a joint resolution incorporating the Bassa Brotherhood Industrial and Beneficial Society (BBIBS) of Monrovia, Montserrado County, as a body politic to receive, hold and enjoy real and personal estate to the value of One Hundred Thousand Dollars (\$100,000.00) for the use and benefit of the said Society. Further, and in consequence thereof, on January 30, 1926, Mr. D.R. Horton et al, Trustees of the BBIBS, purchased ten acres of land from B.J.K. Anderson and wife in the community now known as Bassa Community and of which the disputed 0.82 lot of land forms a part. The appellants stated further that the appellees were in absolute error for simultaneously pleading fee simple title and adverse title, when each accrues upon a party in a complete different manner, way, and situation and within completely different periods of time. Appellants referred to the case *Morris et al. v. Keita*, 39 LLR 710, 717-718 (1999) decided by the Honorable Supreme Court of Liberia. This Court in that case held that one cannot claim title and at the same time claim adverse possession because they are two separate and distinct defenses or claims to the extent that a claim of title and by adverse possession contradicts one another, as one disproves the other or extinguishes the other. The appellants reiterated that their deed was fifty one (51) years older than the appellees' deed and as such, the late William R. Tolbert, Jr. executed the deed to the appellees, his nieces, either by misrepresentation, misinformation, or mistake, by selling private land that had been sold to the co-appellant BBIBS. The appellants further countered that assuming without admitting that a lease agreement was entered into by the appellees' deceased mother, Lucia B. Tolbert, as lessor and Kay-El Traders, same was ultra vires and legally untenable because legitimate ownership title was not vested in the appellees but rather the appellants.

After pleadings rested, the appellees filed a twenty three counts motion for summary judgment basically asserting that the appellants not having denied

moving onto the disputed property without reference to a court of law, they (appellants) be dispossessed and ejected and the appellees put in possession of the property. The relief sought in the motion is basically found in the prayer of the motion. It reads:

"WHEREFORE, and in view of the foregoing, movants respectfully moves Your Honor and this Honorable Court to declare movants' rights in effect as follows:

- a. Until such time respondents seek appropriate legal remedies for claim to real property in notorious possession of movants via the court and due process of law, this court must declare movants' rights provided for by our constitution for one to own private property, and not to be deprived of such private property without due process of law; and,
- b. Declare respondents' unilateral seizure and possession of movants' apartment building without an order from the court of competent jurisdiction, and /or due process of law unlawful and illegal; and
- c. Declare and order respondents, and all those claiming current possession rights under the respondents, immediate removal and eviction from movants' apartment building; and
- d. Issue a writ of re-possession for movants' apartment building in Movants' favor, so as to enable movants to take immediate and actual repossession of movant apartment building and property; and
- e. Grant movants specific damages in the amount of United State Dollars Two Hundred and Twenty-Five Thousand for each of the Nine (9) years respondents have illegally held and leased movants' apartment building, without due process of law; and
- f. Grant movants general damages against the respondents in the amount of United States Dollars Two Hundred Thousand (US\$200.000.00) for the pain and suffering Movants have undergone growing out of the irregular loss and seizure of movants' property for nine unbroken years; and
- g. Grant movants punitive damages in the amount of Six Thousand United States Dollars (US\$6,000.00) as a deterrent to respondents' unlawful seizure, possession and renting of movants' building without fear of the law and respect for due process of law.

The appellants, resisting the motion, countered that summary judgment is not applicable where there is an issue that warrants trial by jury to establish true ownership of the property and that the ejectment action is a question of fact to be tried by jury as it relates to which party's title is legal, superior and valid to be awarded possession of the litigated premises.

Section 11.3.3 of our Civil Procedure Law which sets the basis for granting of summary judgment reads:

"Basis for granting summary judgment. The court shall grant summary judgment if it is satisfied that there is no genuine issue as to any material fact and that the party in whose favor judgment is granted is entitled to it as a matter of law. When motion for summary judgment is made and supported as provided in this section, the adverse party may not rest on mere allegations or denials of his pleading, but his response by affidavits or as otherwise provided in this section must set forth specific facts showing that there is a genuine issue for trial; if he does not so respond, summary judgment, if appropriate, shall be entered against him."

Judge Boima Kontoe who presided over the hearing, having heard the argument on the motion for summary judgment, ruled granting the motion. His ruling principally relied on observance of due process. He raised the issue whether the appellants, claiming ownership to the disputed real property under a deed, can oust the jurisdiction of the court of competent jurisdiction and unilaterally dispossess the appellees who were in actual possession and control of the real property without a court order or due process of law. The Judge held that the claim of the appellees/movants that they had openly and notoriously lived on the property in the 1960 before purchasing same from the Government in 1977, and that the appellants had taken advantage of the war and moved onto the property in 2005, and began renting and leasing the apartments thereon to unknown third parties without the appellants consent, and without court's order was not refuted by the appellants. The appellants' rather alleged that the appellees possession of the 0.82 lots of land and building thereon was due to a fraudulent conveyance by the late President William R. Tolbert of the appellants' land, for which appellants had an older deed. The appellants' seizure, occupation and summary possession of the appellees property without resorting to due process of law, the Judge ruled, was an act totally unsupported by law. The court therefore ordered the appellant evicted and a writ of possession issued to put the appellees back in unrestricted possession of the subject property. Portion of the judge's ruling reads thus:

Court's Ruling:

"From the motion for summary judgment filled by the movants before this court, the legal question for this court to determine is not which party has an older deed or better title to the property, because such determination will involve both issues of law and fact. Because of the failure of the respondent to specifically deny in its resistance that movants had actual possession of the property between 1977 and 2005, when the respondents unilaterally dispossessed movants without an order from a court of competent jurisdiction, or without due process of law, leaves this court with a sole legal issue.

Subsection 3 of section 11.3 of the Civil Procedure Law is unambiguous and quite specific that "... when a motion for summary judgment is made and supported as provided in this section, the adverse party may not rest on mere allegation or denial of his pleading but his response by affidavit or as otherwise provided in this section, must set forth specific fact showing that there is a genuine issue for trial; if he does so respond, summary judgment if appropriate shall be entered against him." Such specific denial of fact by respondent in respond to movants motion for summary judgment is key and of important legal significance for the presiding judge to determine whether or not issues of fact are in dispute, regarding respondents unilateral seizure and possession of movants land and apartment building in 2005, without an order from a court of competent jurisdiction, and without due process of law.

The primary issue before this court is whether or not a party claiming ownership of real property under a deed can oust the jurisdiction of the court of competent jurisdiction and unilaterally dispossess another party who was in actual possession control of the real property, without a court order or due process of law?

The answer is obviously in the negative because Article 20 (a) of the 1986 Constitution of Liberia specifically states that no person shall be deprived of life, liberty, security of the person, property, privilege, or any other right except as the outcome of a hearing judgment consistent with the provisions laid down in this constitution and in accordance with the process of law.

This court cannot imagine if citizens of the Republic had the legal authority to oust the jurisdiction of the courts and take the law into their own hands to settle land disputes how pure anarchy would take over the rule law, and ownership to real property would be left to those who have the requisite brute force to own land in this country. The legal concept that no person shall be deprived of property without due process of law is universally accepted and even buttressed by Article 1 section 8, of the 1847 Constitution of Liberia, which specifically states that "no person shall be deprived of life, liberty, property or privilege but by judgment of his peers or the law of the land." The purpose of this legal theory is to promote harmony and tranquility amongst the citizens and residents of Liberia in the event where respondents were duly bound under Liberian Law and practice to institute the appropriate action to eject or legally remove the Movants from their property with a court order. Evicting or ousting the jurisdiction of the court and taking the law into one's own hand to settle land disputes are frowned on and not tolerated in this jurisdiction.

Respondents allegation in their amended answer in the main action of ejectment, that movant deceased uncle, the late President Williams R. Tolbert, Jr. illegally took respondents property and gave it to his sister, movants deceased mother, is insufficient legal reason for Respondents to have seized movants property without court order or due process of law. Based on movants action, this court's primary concern is to determine whether or not the seizing and taking possession of the property under the actual possession and control of movants in 2005, is supported by an order of judgment emanating from the Monrovia City Court, the sixth Judicial Circuit for Montserrado County and/or the Honorable Supreme Court of Liberia; this not being the case, this court is duty bound to order the repossession of movants of the 0.82 lots of land and apartment building which incontrovertibly was constructed by movants until such time respondents successfully take advantage of remedies provided by law."

To the foregoing ruling of the trial judge, the appellants excepted and announced an appeal to the Supreme Court for appellate review, filing with the trial court a 5 count bill of exceptions as follows:

"1. Because the His Honor J. Boimah Kontoe, Circuit Judge by assignment, flatly and erroneously failed to comprehensively pass upon the issues raised in the respective pleadings of the parties, needless to include the motion for Summary Judgment and its corresponding resistance thereto, that precipitated the subsequent judgment on October 16, 2013.

2. That your Honor committed reversible error by unilaterally upholding movants contention that the sole and primary legal issues of movants' motion for summary judgment, is whether or not the respondents' forceful entry and seizure of movants building and real property without due process of law and without an order from the court of competent jurisdiction is attainable and supported by Liberian Laws and Practices? Such averment raised genuine issue as to the material fact triable by the Jury contrary to his Honor ruling/judgment on October 16, 2013.

3. That your Honor in your ruling on the motion for Summary Judgment overlooked and discarded the doctrinal principle " That the granting of an application for summary judgment is unnecessary when both parties claim title to the same property in litigation since there is a factor or issue that warrants a trial by jury to establish true ownership of the property ". See your Honor ruling/judgment dated October 16, 2013.

4. That the sole reliance on the fact without substantiation by the trial judge in adjudging that respondents took the law into their own hands, by unlawfully seizing movants property without due process of law was illegal and irregular act under the current laws and practices in this jurisdiction is contrary to our practice and procedure incumbent upon the judge as to the application of the law to particular instances as in this case.

5. That Your Honor flatly failed and erred to dispose of the several law issues specifically as it relates to a judge alone, without the aid of the jury, trying an action of ejectment when the issues raised are mixed issues of law and fact which make trial by Jury mandatory. See your Honor's ruling dated October 16, 2013."

From the reading of the pleadings, we see three legal points that the trial court needed to settle: (1) the appellees having been ousted from the disputed property by the appellants without recourse to the law, (2) both parties' claim of title to the disputed property with the appellees further alternative plea of adverse possession, and (3) claim by the appellees for damages.

As to first issue passed on and decided by the trial Judge, this Court is in agreement that the appellants who claimed ownership to the real property, could under no parity of the law, particularly Article 20 (a) of the 1986, oust the jurisdiction of the court of competent jurisdiction and unilaterally

dispossess the appellees who were in actual possession and control of said real property. In order to effect such ouster or eviction, the appellants needed a court order which could have legally been given only after the application of due process of law to the parties. Like the Judge rightly stated, this Court also cannot imagine the extent of pure anarchy that would take over the rule of law if citizens of the Republic had the legal authority to oust the jurisdiction of the courts and take the law into their own hands to settle land disputes. If such was to be allowed, ownership to real property would be left to those who have the requisite brute force to own land in this country.

This Court frowns on such wanton behavior demonstrated by the appellants in this case. Nevertheless, dispossessing the appellants and placing the appellees on the property could not have been settled in a summary judgment growing out of an action of ejectment. Where the appellees chose to file an action of ejectment and not a criminal action to oust the appellants for illegally moving on the disputed property, the trial Judge acted in error in dispossessing the appellants off the property without a hearing to settle the question of title.

An ejectment action is an action to quiet title, which hearing this Court has often emphasized should be conducted with the aid of a jury to determine which party has superior title to the disputed property. Where after the trial the appellants were found not to be entitled to the property and to have wrongfully detained the disputed property, damages as demanded by the appellees in their complaint, as well as delivery of the property, would be considered and ordered in the final ruling of the court.

Our Civil Procedure Law (1973), at Section 62.1 provides when an ejectment action can be brought. It states: "Any person who is rightfully entitled to the possession of real property may bring an action of ejectment against any person who wrongfully withholds possession thereof. Such an action may be brought when the title to real property as well as the right to possession thereof is disputed." Further, Section 62.3 further provides that in a complaint in an action of ejectment, the plaintiff may demand damages for wrongful detention of the real property as well as delivery of possession. The quoted provisions and the manifold decisions of this Court presupposes that these would require a trial by jury, except where there is undisputed admission by a party as would obviate the need for a trial or as would warrant summary judgment.

In this ejectment case filed by the appellees, the trial court should have allowed hearing and production of evidence by the parties as there was clearly a dispute as to the title to the property; after which, it would have examined the respective titles and the evidence produced to determine who is entitled to the property. In the case *Friends of Liberia Association, Inc. et al. vs. Metzger and Petro Chemical Industries, Inc.*, 42 LLR 64, 71 (2004), possession of the premises by the appellant was similar to the facts in this case and the appellant was ordered dispossessed without a hearing into the ejectment action. The Supreme Court held in the cited case that *it is improper for a judge to order an eviction of a party in an ejectment action unless the merits to title of real property are settled. [our emphasis]*

We therefore hold that it was an error for the trial Judge, in the ejectment action filed by the appellees, to dispossess the appellants of the property by his granting of the motion for summary judgment without a hearing being conducted where evidence would have been presented by the parties to establish which party has superior title to the property; to establish the alternative claim of adverse possession; and if establish that the appellants withholding of the said property was illegal, to consider the amount of damages for said illegal withholding of the property from the appellees.

This Court however feels that the appellants exhibited a gross disregard for the law when they entered the property illegally. As the Judge rightly stated, evicting and ousting the jurisdiction of the courts and taking the law in ones' own hand to settle land dispute is frowned on and will not be tolerated in this jurisdiction. In view thereof, the Court mandates that the trial court sends an order to all tenants on the disputed property to have their rents paid to the trial court; said rents to be kept in an accountable escrow accountable pending the final determination of this matter. The Court also orders that the lower court, upon receipt of the mandate from the Court, have this matter placed on its docket to be heard and determined expeditiously.

THE CLERK IS ORDERED to send a mandate to the court below remanding the case for a full hearing and to give effect to this Judgment. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELORS NYENATI N. TUAN OF THE TUAN WREH LAW FIRM IN ASSOCIATION WITH COUNSELOR THEOPHILUS C. GOULD OF THE KEMP & ASSOCIATES AND LEGAL CONSULTANCY CHAMBERS, INC. APPEARED FOR THE APPELLANTS. COUNSELORS FARMERE G. STUBBLEFIELD AND SNONSIO E. NIGBA OF THE STUBBLEFIELD, NIGBA & ASSOCIATES APPEARED FOR THE APPELLEES.